

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE TO CLERK OF E-SERVICE FAILURE AND REQUEST FOR
ADMINISTRATIVE CORRECTION**

Defendant/Appellant, Marc Moszkowski, respectfully files this Notice pursuant to Fla. R. Jud. Admin. 2.516 and states:

1. The docket reflects filings on November 10, 2025, November 12, 2025, and November 18, 2025.
2. Defendant received no e-service notices for any of these filings, despite being properly registered with the Florida e-Portal at m.moszkowski@yahoo.com and m.moszkowski@deepgulf.net.
3. Defendant regularly receives all other e-service notices. The failure therefore appears on the Court/Clerk's end and is not attributable to

Defendant's email system. Selective service failure is confirmed by the following:

(a) Defendant's Affidavit/Application for Indigent Status, determining that Applicant is Indigent, filed November 18, 2025,

(b) Was served on Plaintiffs' counsel, because Plaintiffs subsequently filed a *Motion in Opposition*,

(c) But was not served on Defendant,

4. who learned of the filing only through his opponent's motion.

This establishes that the Clerk's e-service system functioned for Plaintiffs but not for Defendant, resulting in asymmetric service delivery.

5. Such selective service violates Rule 2.516(b) (mandatory simultaneous service on "each party") and Rule 1.080(a), and creates an appearance of unequal treatment and procedural irregularity.

6. Pursuant to Rule 2.516(h), when service fails, the Clerk must take appropriate corrective action.

WHEREFORE, Defendant respectfully requests:

1. Immediate re-service of all filings entered on

- November 10, 2025

- November 12, 2025
- November 18, 2025

2. Written confirmation that Defendant's e-service settings are functioning in the Clerk's system.

3. Identification of any administrative or technical issue that caused service to reach Plaintiffs but not Defendant.

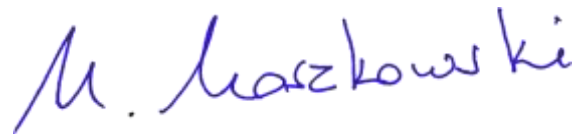
Respectfully submitted this 24th day of November, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 24th day of November, 2025, a copy of this Document has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski